

1 ENGROSSED HOUSE
2 BILL NO. 2123

By: Tedford and Banning of the
House

3 and

4 Haste and Guthrie of the
5 Senate

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8 An Act relating to transportation; amending 69 O.S.
9 2021, Section 1705, as amended by Section 572,
Chapter 486, O.S.L. 2025 (69 O.S. Supp. 2025, Section
10 1705), which relates to powers and duties of the
11 Oklahoma Turnpike Authority; removing authority to
construct certain bridge; authorizing the building of
certain bridge; and providing an effective date.

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14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 69 O.S. 2021, Section 1705, as
16 amended by Section 572, Chapter 486, O.S.L. 2025 (69 O.S. Supp.
17 2025, Section 1705), is amended to read as follows:

18 Section 1705. The Oklahoma Turnpike Authority is hereby
19 authorized and empowered:

20 (a) To adopt bylaws for the regulation of its affairs and
21 conduct of its business.

22 (b) To adopt an official seal and alter the same at pleasure.

23 (c) To maintain an office at such place or places within the
24 state as it may designate.

1 (d) To sue and be sued in contract, reverse condemnation,
2 equity, mandamus and similar actions in its own name, plead and be
3 impleaded; provided, that any and all actions at law or in equity
4 against the Authority shall be brought in the county in which the
5 principal office of the Authority shall be located, or in the county
6 of the residence of the plaintiff, or the county where the cause of
7 action arose. All privileges granted to the Authority and duties
8 enjoined upon the Authority by the provisions of Sections 1701
9 through 1734 of this title may be enforced in a court of competent
10 jurisdiction in an action in mandamus.

11 (e) To construct, maintain, repair and operate turnpike
12 projects and highways, with their access and connecting roads, at
13 such locations and on such routes as it shall determine to be
14 feasible and economically sound; provided, that until specifically
15 authorized by the Legislature, the Authority shall be authorized to
16 construct and operate toll turnpikes only at the following
17 locations:

18 (1) The Turner Turnpike between Oklahoma City and Tulsa.

19 (2) The Southwestern (H.E. Bailey) Turnpike between Oklahoma
20 City and Wichita Falls, Texas.

21 (3) The Northeastern (Will Rogers) Turnpike between Tulsa and
22 Joplin, Missouri.
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1 (4) The Eastern (Indian Nation) Turnpike between Tulsa and
2 Paris, Texas, including all or any part thereof between McAlester
3 and the Red River south of Hugo.

4 (5) The Cimarron Turnpike between Tulsa and Interstate Highway
5 35 north of Perry, including a connection to Stillwater.

6 (6) The Muskogee Turnpike between Broken Arrow and Interstate
7 Highway 40 west of Webbers Falls.

8 (7) All or any part of an extension of the Muskogee Turnpike,
9 beginning at a point on Interstate Highway 40 near the present south
10 terminus of the Muskogee Turnpike, and extending in a southeasterly
11 direction on an alignment near Stigler, Poteau and Heavener to the
12 vicinity of the Arkansas State Line to furnish access to Hot
13 Springs, Texarkana, Shreveport and New Orleans.

14 (8) A tollgate on the Turner Turnpike in the vicinity of
15 Luther, Oklahoma, and in the vicinity of the intersection of State
16 Highway 33 and Turner Turnpike in Creek County, Oklahoma, or in the
17 vicinity of the intersection of State Highway 33 and Turner Turnpike
18 or U.S. Highway 66 in Creek County, Oklahoma, from any monies
19 available to the Authority.

20 (9) Add on the Will Rogers Turnpike a northbound automatic
21 tollgate onto State Highway 28 and a southbound on-ramp from State
22 Highway 28.

23 (10) A turnpike or any part or parts thereof beginning in the
24 vicinity of Duncan extending east to the vicinity of the City of

1 Davis, and extending in a northeasterly direction, by way of the
2 vicinity of the City of Ada, to a connection in the vicinity of
3 Henryetta or in the vicinity of the intersection of State Highway 48
4 and Interstate 40; and a turnpike or any part or parts thereof from
5 the vicinity of Snyder extending north to the vicinity of Woodward.

6 (11) A turnpike or any part or parts thereof beginning at a
7 point in the vicinity of Ponca City, or at a point on the Kansas-
8 Oklahoma state boundary line east of the Arkansas River and west of
9 the point where Oklahoma State Highway No. 18 intersects said state
10 boundary line, and extending in a southeasterly direction to a
11 connection with the Tulsa Urban Expressway System in the general
12 area of the Port of Catoosa.

13 (12) All or any part of an Oklahoma City toll expressway system
14 connecting the residential, industrial and State Capitol Complex in
15 the north part of Oklahoma City with the residential, industrial and
16 Will Rogers World Airport Complex in the south and southwest parts
17 of Oklahoma City.

18 (13) A turnpike (The Industrial Parkway) or any part or parts
19 thereof beginning at a point on the Oklahoma-Kansas state boundary
20 line between the point where U.S. Highway 66 intersects the boundary
21 line and the northeast corner of Oklahoma and ending by means of a
22 connection or connections with Shreveport, Louisiana, and Houston,
23 Texas, in southeastern Oklahoma and at no point to exceed thirty
24 (30) miles west of the Missouri or Arkansas border.

1 (14) A turnpike or any part or parts thereof beginning in the
2 vicinity of Velma or County Line to a point intersecting with
3 Interstate 35 in the area south of Davis.

4 (15) A turnpike or any part or parts thereof beginning in the
5 vicinity of Watonga and extending south and/or east to the vicinity
6 of north and/or west Oklahoma City.

7 (16) A tollgate on the Will Rogers Turnpike near the
8 intersection of State Highway 137 and the Will Rogers Turnpike,
9 located south of Quapaw.

10 (17) A tollgate on the Muskogee Turnpike in the vicinity of
11 Porter, Oklahoma, a tollgate on the Will Rogers Turnpike in the
12 vicinity of Adair, Oklahoma, a tollgate on the Turner Turnpike in
13 the vicinity of Luther, Oklahoma, and a tollgate on the H.E. Bailey
14 Turnpike at Elgin, Oklahoma, from any monies available to the
15 Authority.

16 (18) A tollgate on the Turner Turnpike in the vicinity of
17 Wellston, Oklahoma, from any monies available to the Authority.

18 (19) A tollgate on the Muskogee Turnpike in the vicinity of
19 Brushy Mountain, Oklahoma, and in the vicinity of Elm Grove,
20 Oklahoma, from any monies available to the Authority.

21 (20) All or any part of an Oklahoma City Outer Loop expressway
22 system beginning in the vicinity of I-35 and the Turner Turnpike and
23 extending west into Canadian County and then south to I-40; and then
24 south and east to I-35 in the vicinity of Moore and Norman; and then

1 extending east and north to I-40 east of Tinker Field; and then
2 extending north to the Turner Turnpike to complete the Outer Loop.

3 (21) All or any part of the Tulsa south bypass expressway
4 system beginning in the vicinity of the Turner Turnpike near Sapulpa
5 and extending south and east to U.S. 75 in the vicinity of 96th
6 Street to 121st Street; and then east across the Arkansas River to a
7 connection with the Mingo Valley Expressway; and then south and/or
8 east to a point on the Tulsa-Wagoner County Line near 131st Street
9 south in the city of Broken Arrow.

10 (22) A new turnpike or any part thereof from near the west gate
11 of the Will Rogers Turnpike south to the west end of south Tulsa
12 Turnpike at the Tulsa-Wagoner County Line.

13 (23) A new turnpike or any parts thereof from the vicinity of
14 the connection between State Highway 33 and U.S. 69 easterly to the
15 Arkansas State Line.

16 (24) A four-lane extension of the Muskogee Turnpike from
17 Interstate Highway 40 west of Webbers Falls to the Poteau vicinity.

18 (25) A new turnpike or any part or parts thereof beginning at a
19 point in the vicinity of northwest Tulsa, and extending in a
20 northwesterly direction, by means of a connection or connections
21 with the cities of Pawhuska and Newkirk, to a point intersecting in
22 the vicinity of U.S. Highway No. 77 and the Kansas State Line.

23 (26) A full access interchange on the Indian Nation Turnpike
24 south of Interstate 40, in the vicinity of Henryetta, Oklahoma, and

1 in the vicinity of the proposed theme park, museum or an industrial
2 facility which qualifies for the Oklahoma Quality Jobs Program Act,
3 from any monies available to the Authority.

4 (27) A new turnpike beginning at a point directly west of the
5 Arkansas line and four-laning Highway 70 from that point to the
6 farthest western reach of Highway 70 creating a southern route
7 through Oklahoma.

8 (28) A new turnpike and bridge or any parts thereof from a
9 point in the vicinity of the city of Mustang southerly across the
10 South Canadian River to the H.E. Bailey Turnpike in the vicinity of
11 the city of Tuttle; and then easterly across the South Canadian
12 River to a point in the vicinity of the city of Norman.

13 (29) A new turnpike or any parts thereof beginning at a point
14 in the vicinity of the city of Altus and extending in a
15 northwesterly direction to a point in the vicinity of the city of
16 Sayre.

17 (30) A new turnpike or any parts thereof beginning at a point
18 in the vicinity of the city of Enid and extending in a westerly
19 direction to a point in the vicinity of the city of Woodward.

20 (31) An on- and off-ramp or any parts thereof at Fletcher,
21 Oklahoma, in the vicinity of the Interstate 44 and State Highway 277
22 intersection. Any existing on- or off-ramp or any parts thereof in
23 the vicinity of Fletcher, Oklahoma, shall not be removed and shall
24 be maintained pursuant to Section 1701 et seq. of this title.

1 (32) ~~A new bridge crossing the Arkansas River between South~~
2 ~~Delaware Avenue and Memorial Drive in Tulsa County. This project~~
3 ~~shall commence upon a determination by the Oklahoma Transportation~~
4 ~~Authority that such bridge shall be self-sufficient at some point~~
5 ~~over a thirty-year time period from the toll charges associated with~~
6 ~~the bridge project.~~

7 ~~(33)~~ An exit ramp or any parts thereof from the eastbound lane
8 of the Turner Turnpike at 96th Street in Tulsa.

9 ~~(34)~~ (33) An on- and off-ramp or any parts thereof on the
10 Cimarron Turnpike in the vicinity of the northside of the Glencoe,
11 Oklahoma, municipal limits.

12 ~~(35)~~ (34) A new turnpike or any parts thereof beginning at
13 Interstate 44 at or near its intersection with 49th West Avenue,
14 past State Highway 64/412, turning northeasterly, crossing 41st West
15 Avenue, and continuing eastward to the L.L. Tisdale Expressway in
16 Tulsa, Oklahoma.

17 (35) A new bridge, crossing the Arkansas River in the vicinity
18 of Bixby, Oklahoma.

19 All access roads, interchanges, or lead roads connecting such
20 turnpikes with existing highways must be built by funds furnished by
21 the Authority.

22 The minimum and maximum wages for the construction of the roads,
23 highways and projects provided for in Sections 1701 through 1734 of
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1 this title shall be in accordance with the schedules of wages used
2 or adopted by the Commission in construction of state highways.

3 The Authority is hereby authorized to enter into contracts or
4 agreements with agencies and instrumentalities of other states or
5 the national government for construction, maintenance and operation
6 of interstate turnpikes or highways.

7 The Authority is hereby required to construct and install
8 automatic tollgates on the Will Rogers Turnpike at State Highway No.
9 28 near Adair.

10 (f) To issue turnpike revenue bonds of the Authority, payable
11 solely from revenues, including the revenues accruing to the trust
12 fund created by Sections 1701 through 1734 of this title, for the
13 purpose of paying all or any part of the cost of any one or more
14 turnpike projects. Provided that any bonds issued for the
15 construction of the proposed turnpike referred to in subparagraphs
16 (10), (20), (21) and (22) of paragraph (e) of this section shall be
17 issued as one issue for all four of the proposed turnpikes and shall
18 be financed, constructed and operated under one bond indenture.

19 (g) To fix and revise from time to time tolls for the use of
20 any turnpike projects.

21 Any common carrier having authority at the time of opening any
22 turnpike project to operate upon a highway approximately paralleling
23 the turnpike project shall be granted without further showing
24 authority to operate over the turnpike project to all municipalities

1 which such carrier is serving at the time the turnpike project is
2 opened to traffic. But nothing herein shall be construed as
3 granting any new operation rights to any common carriers.

4 (h) To acquire, hold, and dispose of real and personal property
5 in the exercise of its powers and the performance of its duties.

6 (i) To acquire in the name of the Authority by purchase or
7 otherwise on such terms and conditions and in such manner as it may
8 deem proper, or by exercise of the right of condemnation in manner
9 hereinafter provided, such public or private lands, including public
10 parks, playgrounds, or reservations, or parts thereof or rights
11 therein, rights-of-way, property, rights, easements, and interests,
12 as it may deem necessary for carrying out the provisions of Sections
13 1701 through 1734 of this title; provided, that all public property
14 damaged in carrying out the powers granted by Sections 1701 through
15 1734 of this title shall be restored or repaired and placed in its
16 original condition as nearly as practicable.

17 (j) To designate, except as is provided for herein, the
18 location, and establish, limit and control such points of ingress to
19 and egress from each turnpike project as may be necessary or
20 desirable in the judgment of the Authority to insure the proper
21 operation and maintenance of such project, and to prohibit entrance
22 to such project from any point or points not so designated.

23 (k) To make and enter into all contracts and agreements
24 necessary or incidental to the performance of its duties and the

1 execution of its powers, and to employ consulting engineers,
2 attorneys, accountants, construction and financial experts,
3 superintendents, managers, and such other employees and agents as
4 may be necessary in its judgment, and to fix their compensation;
5 provided, that all such expenses shall be payable solely from the
6 proceeds of turnpike revenue bonds issued under the provisions of
7 Sections 1701 through 1734 of this title or from revenues; provided,
8 further, no attorney employed by the Authority, nor any member of
9 any law firm of which the attorney may be connected, shall ever be
10 paid any fee or compensation for any special or extraordinary
11 services.

12 (l) To receive and accept from any federal agency grants for or
13 in aid of the construction of any turnpike project, provided, the
14 acceptance of such grants will not reduce the amount of federal aid
15 for the construction, repair, or maintenance of farm-to-market roads
16 and other highways and bridges in this state; and to receive and
17 accept aid or contributions from any source of either money,
18 property, labor, or other things of value, to be held, used, and
19 applied only for the purposes for which such grants and
20 contributions may be made.

21 (m) To adopt such rules, and to do any and all things necessary
22 to comply with rules, regulations, or requirements of the Bureau of
23 Public Roads, Multistate Economic Development Regional Commission,
24 as defined in Sections 1151 through 1153, inclusive, of Title 74 of

1 the Oklahoma Statutes, Ozarka Region Commission or any other federal
2 agency administering any law enacted by the Congress of the United
3 States to aid or encourage the construction of highways.

4 (n) To do all things necessary or convenient to carry out the
5 powers expressly granted in Sections 1701 through 1734 of this
6 title. The design standards for all paving shall comply with the
7 design standards of the American Association of State Highway and
8 Transportation Officials as modified by the Oklahoma Department of
9 Transportation. All contracts for construction work on turnpike
10 projects shall be let to the lowest responsible bidder, or bidders,
11 after notice by publication in a newspaper published in the county
12 where the work is to be done in two consecutive weekly issues of the
13 newspaper. In all cases where more than eight (8) miles of
14 construction is let at the same time and is not an advertisement for
15 a surface-treatment-only project, such advertisement shall provide
16 for bids on sections of the turnpike not to exceed eight (8) miles.
17 If the project advertised is a surface-treatment-only project of
18 more than twenty (20) miles of road, the advertisement shall provide
19 for bids on sections of the road no longer than twenty (20) miles,
20 as well as bids on the project as a whole. Subject to the following
21 restrictions and limitations, the Authority shall, when contracting
22 for construction work, divide such work into paving projects, bridge
23 projects, including underpasses and overpasses, and earthmoving or
24 miscellaneous projects, according to the type of work to be done.

1 Each project shall be let under a separate contract or contracts and
2 no contract or project shall include more than one of such types of
3 construction work. Each contract for construction work shall
4 contain a provision that ninety percent (90%) of all labor employed
5 on the project shall be residents of Oklahoma. However, contracts
6 for bridges may include earthwork and structures for the approaches
7 thereto.

8 (o) It shall be unlawful for any member, officer or employee of
9 the Authority to transact with the Authority, either directly or
10 indirectly, any business for profit of such member, officer, or
11 employee; and any person, firm, or corporation knowingly
12 participating therein shall be equally liable for violation of this
13 provision.

14 The term "business for profit" shall include, but not be limited
15 to, the acceptance or payment of any fee, commission, gift, or
16 consideration to such member, officer, or employee.

17 Violation of this provision shall constitute a Class D1 felony
18 offense punishable by incarceration as provided for in subsections B
19 through F of Section 20N of Title 21 of the Oklahoma Statutes, or a
20 fine of not less than Five Hundred Dollars (\$500.00) and not more
21 than Five Thousand Dollars (\$5,000.00), or both such imprisonment
22 and fine.

23 (p) In the event of a national emergency, the Authority,
24 subject to any vested rights or claims, may enter into contracts

1 with the federal government or any authorized agency thereof to
2 allow the federal government or agency thereof to use such turnpikes
3 partly or exclusively during the existence of such emergency,
4 provided, that the federal government agrees in such contract to
5 pay, during the term of such contract, an amount sufficient, when
6 added to any tolls collected, to meet all operating and maintenance
7 expenses, interest payments, and the minimum sinking fund and
8 reserve requirements of the trust agreement for the turnpike covered
9 by the contract.

10 (q) All meetings of the Authority shall be open public
11 meetings, and all records shall be public records, except when
12 considering personnel or litigation.

13 SECTION 2. This act shall become effective November 1, 2026.

14 Passed the House of Representatives the 16th day of March, 2026.

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16 _____
17 Presiding Officer of the House
18 of Representatives

19 Passed the Senate the _____ day of _____, 2026.

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21 _____
22 Presiding Officer of the Senate
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